

CHAPTER 32.

An Act to make provision for the establishment of a criminal lunatic asylum in Scotland, and for purposes connected therewith.

[2nd August 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Establishment and maintenance of criminal lunatic asylum in Scotland.

1.—(1) It shall be lawful for the Secretary of State, with the sanction of the Treasury, to authorise the Prisons Department for Scotland (hereinafter referred to as the Department) to establish, maintain and manage a criminal lunatic asylum in Scotland, and for that purpose to acquire land and to provide and equip buildings.

(2) The criminal lunatic asylum established in pursuance of this Act (hereinafter referred to as the criminal lunatic asylum) shall be deemed not to be an asylum within the meaning of the Lunacy (Scotland) Acts, 1857 to 1919.

Secretary of State may appoint officers for asylum.

2. The Secretary of State may appoint for the purpose of the maintenance and management of the criminal lunatic asylum a resident medical superintendent, and such other officers and servants as he may, with the concurrence of the Treasury, deem necessary and such resident medical superintendent and other officers and servants shall receive such salaries or remuneration as the Secretary of State may, with the consent of the Treasury, determine.

Appointment of Advisory Committee.

3.—(1) For the purpose of advising and assisting the Department with regard to the maintenance and management of the criminal lunatic asylum, the Secretary of State shall appoint an Advisory Committee consisting of not less than three nor more than six persons, one of whom the Secretary of State shall appoint to be chairman.

(2) The chairman and the members of the Advisory Committee shall hold office for three years from the date of their appointment. The Department may require any of its officers to act as clerk to the committee.

(3) Any vacancy in the office of chairman or member of the Advisory Committee shall be filled by the Secretary of State as soon as practicable, and the person so appointed shall hold office only so long as the person in whose place he is appointed would have held office if the vacancy had not occurred.

(4) The Advisory Committee may authorise any member or members thereof to visit and inspect the criminal lunatic asylum, and the Department shall afford to the committee and to any member or members so authorised such information as may be necessary to enable them to carry out their duties.

4.—(1) It shall be lawful for the Department to order the removal to and detention in the criminal lunatic asylum of any person undergoing sentence of penal servitude, preventive detention or imprisonment (not being imprisonment under civil process) in whose case it is certified by two duly qualified medical practitioners that he is insane and that it is advisable that he should be detained in the criminal lunatic asylum rather than in any other asylum, and such person may thereupon be removed and detained accordingly until the expiry of his sentence : Provided that—

Removal of persons from prisons to criminal lunatic asylum and detention therein.

- (i) the Department shall, on application made by or on behalf of any person in whose case such an order as aforesaid has been made, afford an opportunity to a medical practitioner employed by such person or on his behalf to examine him not later than thirty days after the date of the order, and the Secretary of State shall consider any report by such medical practitioner which may be submitted to him, and shall take such action as may seem to him necessary in all the circumstances of the case ;
- (ii) the Department shall, if any person detained in the criminal lunatic asylum in pursuance of this subsection recovers his sanity before the expiry of his sentence, cause him to be removed back to prison, to be there detained until the expiry of his sentence.

(2) Where it is certified by two duly qualified medical practitioners (one of whom shall be a medical practitioner who is not a salaried officer of the Department) within fourteen days before the expiry of the sentence imposed on any person detained in the criminal lunatic asylum in pursuance of the last foregoing subsection, that such person is insane, that he cannot be set at liberty without danger to the public or to himself, and that it is advisable that he should be detained after the expiry of his sentence in the criminal lunatic asylum rather than in any other asylum, the Secretary of State may order that he be detained accordingly, and thereupon such person may be dealt with in like manner in all respects as if such order were an order for his custody until His Majesty's pleasure be known :

Provided that—

- (i) the Department shall, on application made by or on behalf of any such person as aforesaid, afford an opportunity to a medical practitioner employed by him or on his behalf to examine him not later than fourteen days before the expiry of his sentence, and the Secretary of State, before making an order under this subsection for the detention of such person, shall consider any report by such medical practitioner which may be submitted to him not later than ten days before the said expiry;
- (ii) the Department shall cause any person detained in the criminal lunatic asylum in pursuance of an order under this subsection to be medically examined at intervals as nearly as may be of three months and a report to be furnished to the Secretary of State whether such person is insane, whether he can be set at liberty without danger to the public or to himself and whether, if he is insane, it is advisable that he should be further detained in the criminal lunatic asylum rather than in any other asylum, and the Secretary of State shall, on receipt of such report, consider whether any and, if so, what further detention is necessary.

(3) If any person detained in the criminal lunatic asylum becomes afflicted with any contagious or infectious disease, which renders his removal necessary for the health of the other inmates of the asylum, or with any disease or condition which threatens immediate danger to his life or which cannot be suitably treated in the criminal lunatic asylum, the Department may cause him to be removed to a hospital or other fit place, and may cause him to be returned to the criminal lunatic asylum when he has recovered from such contagious or infectious disease or when there is no longer any immediate danger to his life, or when he can be suitably treated in the criminal lunatic asylum.

(4) Any enactment whether or not extending to Scotland only and relating to removal or transfer to or from, or^{*}reception or detention in, or liberation from, the prison at Perth or the lunatic department thereof, of an insane person shall, as from such date as the Secretary of State may appoint, have effect as if for any reference to the said prison or department there were substituted a reference to the criminal lunatic asylum.

(5) Sections nineteen and twenty-two of the Lunacy 25 & 26 Vict.
(Scotland) Act, 1862 (which sections relate to the detention c. 54.
of insane prisoners in the prison at Perth, and to the removal thereto of insane prisoners from other prisons) shall be repealed, as from such date as the Secretary of State may appoint: Provided that it shall be lawful to give any order for the safe custody of a person detained in the lunatic department of the said prison in pursuance of the said section nineteen which might have been given if this subsection had not been enacted.

5.—(1) Any order or warrant for the removal, transfer or conveyance of any person to or from the criminal lunatic asylum may be executed by any officer or servant of the Department.

Execution
of orders for
removal to
criminal
lunatic
asylum and
apprehen-
sion of
persons
escaping
therefrom.

(2) If a person detained in or ordered to be removed or transferred to or from the criminal lunatic asylum escapes therefrom or in the course of such removal or transfer, he may at any time be apprehended without warrant by any officer of police or by any officer or servant of the Department, and removed to the said asylum.

Sheriff's right
to visit
criminal
lunatic
asylum.

6. The sheriff within whose jurisdiction the criminal lunatic asylum is situate may from time to time visit and inspect the same.

Rules.

7.—(1) The Secretary of State may from time to time make rules for the government and management of the criminal lunatic asylum, and for the duties and conduct of the officers thereof and for the care and treatment of the persons detained therein.

(2) Any rules made under the foregoing subsection shall be laid before each House of Parliament as soon as may be after they are made, and if an address is presented to His Majesty by either House of Parliament within the next subsequent twenty-eight days on which that House has sat after any such rule is laid before it, praying that the rule shall be annulled, it shall thenceforth be void, without prejudice, however, to the validity of anything previously done thereunder or the making of a new rule.

Expenses
payable out
of moneys
provided by
Parliament.

8. There shall be paid out of moneys provided by Parliament—

- (a) any expenses incurred in respect of the establishment, maintenance and management of the criminal lunatic asylum and of the maintenance and treatment of persons detained therein,
- (b) to such extent as may be sanctioned by the Department with the consent of the Treasury, any expenditure incurred by the Advisory Committee (including such sums as the Department may think reasonable in respect of travelling and other personal expenses incurred by the members).

Citation
and extent.

9. This Act may be cited as the Criminal Lunatics (*Scotland*) Act, 1935, and, save as otherwise expressly provided, shall extend to Scotland only.

